

VERSION NO. 2	MANUAL TITLE FINANCE AND ADMINISTRATION MANUAL	DOCUMENT NO. FAM 4.13
	DOCUMENT NAME EMPLOYEE SEPARATION	REVISION NO. 0
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1. OBJECTIVES

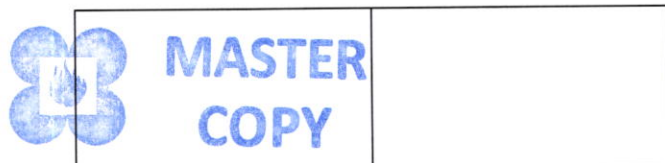
- 1.1 To provide clear guidelines on matters pertaining to separation from service of employees
- 1.2 To ensure that all employees separating from service is properly documented and processed.
- 1.3 To ensure compliance with pertinent civil service regulations and related issuances

2. SCOPE

This procedure covers all qualified employees of PSHS, who are separating or terminating their services with the PSHS System.

3. POLICIES

- 3.1. Unless otherwise repealed, revised, or amended by applicable laws, board resolution, or government issuances, the following policies shall remain in effect for purposes of this document. In case of any conflict, the existing law or regulation shall prevail.
- 3.2. In case of an amendment, revision or repeal in whole or in part of any provision in the law or rule as herein aforementioned, such amendment, revision or repeal shall prevail, as the basis of the action, without further need for a revision of this document.
- 3.3. Definition of Terms
 - 3.3.1. Retirement benefits – remuneration, which include pensions, gratuities, terminal leave benefits, and other benefits, given to an official or employee by reason of his/her retirement from government service.
 - 3.3.2. Force majeure – events or circumstances which could not be foreseen, or which though foreseen, are inevitable.
- 3.4. Period for release of retirement benefits of retiring government employees shall be released to them within a period of 30 days from the actual retirement date of the concerned employee, provided that all required documents are submitted by



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the retiring employee. The PSHS shall submit all requirements for purposes of retirement to the DBM/GSIS/PAGIBIG at least 90 days prior to the effectivity date of retirement. To complete all said requirements in due time, the employee concerned shall file his/her expression of intent to retire at least 120 days prior to his/her actual retirement date.

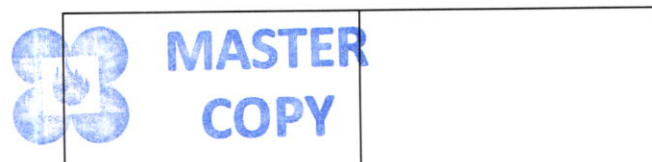
3.5. The occurrence of force majeure or other insuperable cause shall toll the running of the prescribed period. Upon cessation of the occurrence of force majeure or other insuperable causes, the running of the prescribed period shall continue.

3.6. Retirement benefits granted under the GSIS Act of 1997 and applicable issuances shall be released to the retiree on his/her last day of service in the government: provided that all requirements are submitted to the GSIS at least 90 days prior to the effective date of retirement, the release of the retirement benefits shall be moved corresponding to the number of days of delay of submission of the complete requirements.

3.7. Retiring employees with pending cases

3.7.1. Retirement benefits of retiring employees may only be withheld if the employee has a pending administrative case, the outcome of the case involves a possible pecuniary liability on the part of the employee, and the law specifically authorizes the withholding of the retirement benefits. In no case, however, shall the terminal/accrued leave benefits of a retiring employee be withheld because of a pending administrative case.

3.7.2. The Executive Director/ Campus Director where the administrative case against a retiring employee is pending shall ensure that said case is terminated/resolved within a period of 3 months from the effectivity date of the retirement of the concerned employee. After the lapse of such period and the case has not yet been terminated/solved, without justifiable reason/s and/or without fault or delay attributable to the retiring employee, the retirement benefits due shall be immediately released to him/her without prejudice to the outcome of the case. The concerned quasi-judicial agency where the case is pending shall determine and resolve issues pertaining to aforesaid fault and/or delay. For this purpose, appeal taken by the employee shall constitute a justifiable reason for the non-release of his/her retirement benefits.



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3.7.3. Notice of pendency of case - the retiring employee shall seek of pendency/non-pendency of administrative case from his/her employer agency, Civil Service Commission, Office of the Ombudsman, or in case of presidential appointees, from the Office of the President.

3.7.4. The retiring employees shall:

3.7.4.1. Submit a written expression of intent to retire indicating the desired date of retirement and the retirement package he/she intends to avail at least 120 days prior to his/her actual retirement date; and

3.7.4.2. Submit the complete documentary requirements prescribed by the employer-agency not later than 100 days prior to the actual/intended date of retirement.

3.8. Resignation

3.8.1. The following documents shall be submitted to the CSC for record purposes:

3.8.1.1. The voluntary written notice of the employee informing the appointment authority that he is relinquishing his position and the effectivity date of the said resignation; and

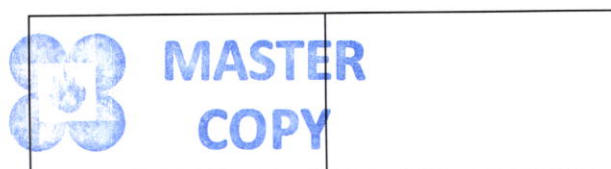
3.8.1.2. The acceptance of resignation in writing by the Executive Director/Campus Director or appointing authority which shall indicate the date of effectivity of the resignation.

3.8.1.3. An officer or employee under investigation may be allowed to resign pending decision of his case without prejudice to the continuation of the proceedings until finally terminated.

3.8.2. Dropping from the Rolls

3.8.2.1. Officers and employees who are either habitually absent or have unsatisfactory or poor performance or have shown to be physically and mentally fit to perform their duties may be dropped from the rolls subject to the following procedures:

3.8.2.1.1. Absence without approved leave



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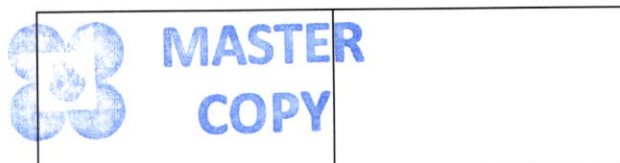
3.8.2.1.1.1. An officer who is continuously absent without approved leave (AWOL) for at least thirty (30) calendar days shall be separated from the service or dropped from the rolls without prior notice. He shall however be informed of his separation from the service not later than five (5) days from its effectivity which shall be sent to the address appearing on his 201 files; and

3.8.2.1.1.2. If the number of unauthorized absences incurred is less than thirty (30) calendar days, written Return-to-Work order shall be served on the official or employee at his last known address on record. Failure on his part to report for work within the period stated in the order shall be a valid ground to drop him from the rolls.

3.8.2.1.2. Unsatisfactory or Poor Performance

3.8.2.1.2.1. An official or employee who is given two (2) consecutive unsatisfactory ratings may be dropped from the rolls after due notice. Notice shall mean that the officer or employee concerned is informed in writing of his unsatisfactory performance for a semester and is sufficiently warned that a succeeding unsatisfactory performance shall warrant his separation from the service. Such notice shall be given not later than 30 days from the end of semester and shall contain sufficient information which shall enable the employee to prepare explanation.

3.8.2.1.2.2. An official or employee, who for one evaluation period is rated poor in



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performance, may be dropped from the rolls after due notice. Due notice shall mean that the officer or employee is informed in writing of the status of his performance not later than the 4th month of the rating period with sufficient warning that failure to improve his performance within the remaining period of the semester shall warrant his separation from the service. Such notice shall also contain sufficient information which shall enable the employee to prepare explanation.

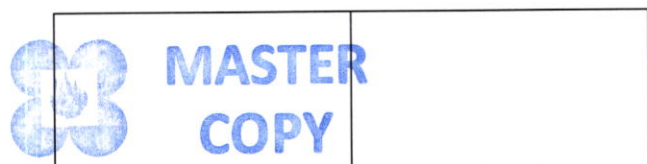
3.8.2.1.3. The officer or employee who is separated from the service thru any of the above modes has the right to appeal his case to the Civil Service Commission (CSC) or its regional office within fifteen (15) days from receipt of such order or notice of separation.

3.8.2.1.4. The order of separation is immediately executory pending appeal, unless the CSC, on meritorious grounds, directs otherwise.

3.8.2.1.5. This mode of separation from the service for unauthorized absences or unsatisfactory or poor performance or physical and mental incapacity is non-disciplinary in nature and shall not result in the forfeiture of any benefits on the part of the official or employee nor in disqualifying him from reemployment in the government.

3.8.2.1.6. The written notice mentioned in the preceding paragraphs may be signed by the person exercising immediate supervision over the official or employee. However, the notice of separation shall be signed by the appointing authority or Executive Director/Campus Director.

3.8.2.2. Dismissal



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3.8.2.2.1. A certified true copy of the decision rendered where the penalty of dismissal was imposed shall be submitted to the CSC.

3.8.2.2.2. Other modes of separation such as termination/expiration of temporary appointment, retirement, or death, a notice stating the date of such separation shall be submitted to the CSC.

3.9. Extension of Service

3.9.1. In meritorious cases, the Commission may allow the extension of service of a person who has reached the compulsory retirement age of sixty-five (65), for a period of six (6) months only unless otherwise stated. Provided that, such extension may be for a maximum period of one (1) year for one who will complete the fifteen (15) years of service required under the GSIS Law.

3.10. Request for Extension of Service

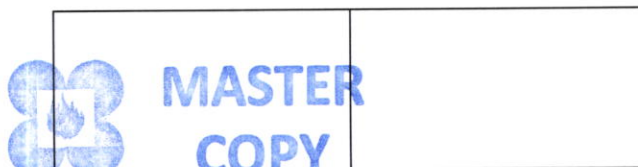
3.10.1. A request for extension shall be made by the Executive Director/Campus Director and shall be filed with the Commission not later than three (3) months prior to date of the official/employee's compulsory retirement.

3.10.2. The following documents shall be submitted to the Commission:

3.10.2.1. Request for extension of service signed by the Executive Director/Campus Director, containing the justifications for the request;

3.10.2.2. Certificate that the employee subject of the request is fit mentally and physically to perform the duties and functions of his/her position;

3.10.2.3. Certified true copy of the employee's Certificate of Live Birth;



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3.10.2.4. Service Record of the employee if the purpose of the extension is to complete the fifteen (15) year service requirement under the GSIS law; and

3.10.2.5. Proof of payment of filing fee.

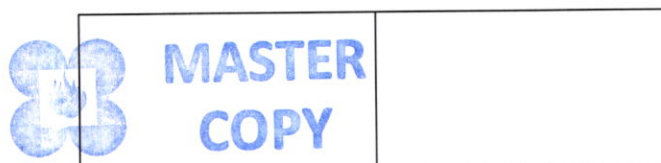
3.10.3. The only basis for Executive Director/Campus Director to allow an employee to continue rendering service after his/her 65th birthday is a Resolution of the CSC granting the request for extension. Absence of such resolution, the salaries of the said employee shall be for the personal account of the responsible official.

3.10.4. Grant of Extension of Service. An employee on service extension shall be entitled to salaries, allowances and other remunerations, that are normally considered part and parcel of an employee's compensation package, subject to the existing regulations on the grant thereof.

4. PROCEDURES

4.1. Retirement Application Assistance

Responsibility	Activity
Employee	1. Submit letter of intent 1 year prior to his/her retirement to the HRMO on the availment of optional / early retirement copy furnished Budget Office for inclusion in the budget proposal
HRMO	2. Upon receipt from Retiree the letter of intent for retirement, indicates the type of benefits he/she is qualified RA 1616, RA 8291 (18 months/60 months lump sum) forwards it to the Executive Director/Campus Director for notation 3. Prepares the acceptance letter addressed to the retiree of his/her application for retirement and forwards to FAD Chief for their initials and approval Executive Director / Campus Director 4. Requests the Retiree to accomplish application form for GSIS Retirement and application for Cash



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Responsibility

Activity

Surrender Value and attach the original GSIS policy Contract

5. Prepares various documents for attachment to the application form to GSIS like the following:
 - a. Certification of last day of his/her employment
 - b. Service Record
 - c. Declaration of pending/non-pendency of case after the approval of retirement claim/before release of check or crediting to GSIS e-Card
6. Forwards the application form for retirement and all the supporting documents to Records Management Unit for records purposes

Records Officer

7. Releases the documents to Human Resource Management Unit for filling to GSIS

HRMO

8. Submits the application form for retirement and all supporting documents to GSIS

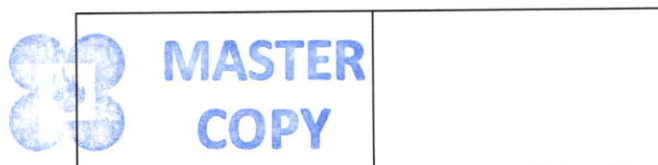
- a. Preparation for Terminal Leave Benefits

Responsibility

Activity

Employee

1. Submits the following:
 - a. Updated SALN
 - b. Approved clearance from money, property and legal accountabilities
 - c. Approved Leave Application
 - d. In case of resignation / retirement, letter of resignation / retirement duly accepted by the Head of the Agency
 - e. Affidavit of applicant that there is no pending criminal investigation or prosecution against the employee
 - f. Affidavit of understanding to deduct accountabilities

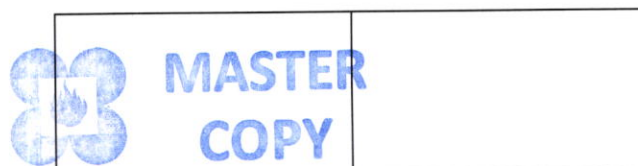


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Responsibility	Activity
HRMO	2. Fill up the leave balances portion of the form and affix signature and forwards to Division Head for recommendation and to the Executive Director / Campus Director for approval 3. Prepares various documents for attachment to the application for Terminal Leave Benefits: a. Certified photocopy of employees leave card of last date of service duly audited and Certificate of Leave Credits b. Complete Service Record c. Certified photocopy of appointment / Notice of Salary Adjustment showing the highest salary received if the salary under the last appointment is not the highest Approved list of retirees to be paid d. Computation of terminal leave benefits duly signed / certified by the accountant And other documents required by the DBM
FAD Chief	4. Reviews/examines the correctness of the data and completeness of the documents of the retiree and prepare request for funding to DBM

b. Employee Resignation

Responsibility	Activity
Employee	1. A. Submits resignation letter to Executive Director / Campus Director for approval / disapproval for non-teaching personnel B. Submits resignation letter to Campus Director for endorsement to BOT
Executive Director / Campus Director	2. Forwards the letter to the Division Chief for information

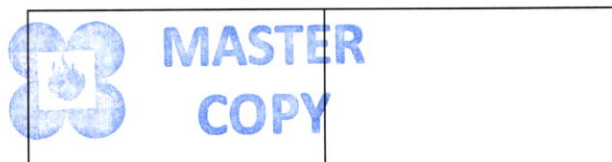


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Responsibility	Activity
Division Chief	3. Forwards to Human Resource Management Unit for Preparation of Acceptance Letter
HRMO	4. Drafts Acceptance of Resignation Letter and forwards to Executive Director / Campus Director for signature
	5. Computes remaining salary, other benefits and total deduction/loans and refer to procedures 2 and 3 of 4.2 for TLB computation
	6. Upon receipt of signed Acceptance of Resignation, prepares the transmittal letter for the Executive Director/ Campus Director's signature.
	7. Transmits to CSC the endorsement letter together with the Letter of Resignation and Acceptance of Resignation for records purposes

c. Employee Transfer to Other Government Agencies

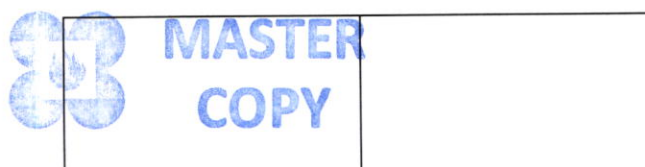
Responsibility	Activity
Employee	1. Submits request for transfer to other government agency to Executive Director / Campus Director for appropriate action
Executive Director / Campus Director HRMO	2. Forwards the acted letter of request for transfer to Human Resource Management Unit
	3. Upon receipt of acted request for transfer, informs the employee on the status of request
Employee	4. If approved, informs the employee to accomplish the Personnel Action Request Form for the processing of documents for transfer
HRMO	5. Submits the accomplished Personnel Action



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<u>Responsibility</u>	<u>Activity</u>
	Request Form to Human Resource Management Unit
	6. Acts on the submitted Personnel Action Request Form
HRMO	7. Computes last salary pay and other benefits and deductions and prepare Disbursement Voucher
	8. Release the required documents to facilitate the transfer of the employee
Employee	9. Accepts documents
d. Employee Dismissal	

<u>Responsibility</u>	<u>Activity</u>
Executive Director thru Board Secretary	1. Provides copy of the final decision of the BOT to the campus or OED FAD Chief
Campus Director	2. Receives copy from the OED of the BOT Resolution, copy furnished the FAD Chief
FAD Chief	3. Immediately sends the decision to the concerned employee, the complainant and their counsel. Wait for 15 days for the filing of Motion for Reconsideration from the accused employee. If there is none, proceed with the implementation.
	4. Informs the CSC of the decision and provides copy of the BOT decision



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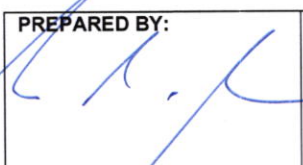
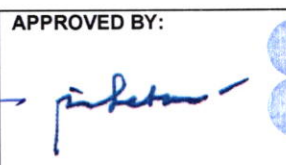
5. LIST OF FORMS AND REPORTS

5.1. Forms

None

5.2. Reports

None

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